

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504274	HACKENBROCH VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Here, Plaintiff requests the following hourly rates:

Timekeeper	Rate	Hours (after withdrawal)	Total
David Barry	\$695	12.4 (18.8-6.4)	\$8,618.00
Kristopher Storti	\$600	0.7	\$420.00
Logan Pascal	\$500	5.7	\$2,850.00
C. Richard Lara	\$375	1.3	\$487.50
Christopher Derhartounian	\$350	6.2	\$2,170.00
Total		26.3	\$14,545.50

Hourly Rates

In its opposition, Defendants do not specifically challenge the requested hourly rate but instead argue that counsel's rate of up to \$695 "already accounts for Counsel's claimed expertise, delay, and risk." (Opposition, p. 8.) Plaintiff supports the requested rates with counsel's declarations describing counsel's rates, his experience, comparable market rates, and recent court approvals. (Barry Decl., ¶¶ 10, 15, 17-52.) The court allows the requested rates.

Hours Billed

With the reply, Plaintiff withdrew 6.4 hours (or \$4,448) for anticipated work on a motion to tax costs that Defendant did not file. The court excludes that time.

As to the remaining 26.3 hours, the entries reflect work related to the pleadings, statutory disclosures, document/initial disclosure review, deposition preparation and attendance, settlement advice, client communications, and the fee motion. Contrary to Defendant's arguments, the court will not reduce the requested time merely because counsel used templates or because the case settled before dispositive motions or trial. The hours billed are not unreasonable. The court also declines to exclude travel time as Defendant identifies no case-specific basis showing the travel was unnecessary or unreasonable. The court also finds that the challenged client communications, disclosure work, file review, and court-notice review are reasonably expended. As to requested fees for anticipated reply-related work, the court allows only 2 of the 8 projected hours for opposition review, reply preparation, and the hearing, reducing Barry's time by 6 hours because counsel did not justify the remaining anticipated time through an updated declaration showing the *actual* time spent.

Timekeeper	Rate	Adjusted Hours (after withdrawal)	Total
David Barry	\$695	6.4 (18.8 - 6.4 - 6)	\$4,448
Kristopher Storti	\$600	0.7	\$420
Logan Pascal	\$500	5.7	\$2,850
C. Richard Lara	\$375	1.3	\$487.50
Christopher Derhartounian	\$350	6.2	\$2,170
Total		20.3	10,375.50

Multiplier

The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the

burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.) Here, the record does not show novel legal issues, exceptional difficulty, or skill beyond that reflected in the approved hourly rates. The court denies the requested 0.10 multiplier.

Costs

Plaintiff seeks \$1,296.91 in costs. Defendant challenges \$760.51 of Plaintiff’s \$1,296.91 in claimed costs: court reporter fee (\$550) for a future hearing; electronic filing and service (\$73.77) absent documentation or explanation; and mileage (\$136.74). Plaintiff did not address the challenged costs individually but instead cites *Briggs v. Elliott* (2023) 92 Cal.App.5th 683, arguing that the court should disregard Defendant’s cost challenges because Defendant filed no standalone motion to tax costs. However, Plaintiff’s reliance on *Briggs* is misplaced. *Briggs* involved a different statutory scheme (CCP § 685.070). Defendant challenges the reasonableness and actual incurrence of costs sought as part of Civ. Code §1794(d). Plaintiff does not adequately establish the \$550 court reporter charge was actually incurred. Plaintiff also does not provide sufficient documentation or explanation for the \$73.77 electronic filing or service charge. For the \$136.74 mileage charge, Plaintiff’s cost memorandum states the expense was incurred on 1/7/26 for travel to and from Plaintiff’s deposition (\$68.37 each way). The court allows that documented and reasonably necessary expense but disallows the \$550 court reporter charge and the \$73.77 electronic filing and service charge, reducing the cost award by \$1,296.91 minus \$623.77 to \$673.14.

The court grants the motion and awards reduced amounts of \$10,375.50 in lodestar fees (no multiplier) and \$673.14 in costs, for a total award of \$11,048.64. Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 14, 2026, 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504557	JONES VS JONES	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met.

General Demurrer

Sham Pleading

Defendants point out that the SAC alleged the settlement terminated the parties’ business relationship, but the TAC deleted this allegation and now alleges under the